BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH

COMPANY APPLICATION NO.CP(CAA) –05/(AHM)/2022

In the matter of:

Sections 230 - 232 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

AND

IN THE MATTER OF SCHEME OF AMALGAMATION OF:

MOHIT AGRO COMMODITIES PROCESSING PRIVATE LIMITED

…Petitioner Company No.1 /Transferor Company

WITH

GUJARAT AMBUJA EXPORTS LIMITED

…Petitioner Company No.2/Transferee Company

Order Pronounced on: 24.01.2022

CORAM:
DR.DEEPTI MUKESH , MEMBER (J)
KAUSHALENDRA KUMAR SINGH, MEMBER(T)

For the Applicant: Advocate, Mr. Jaimin Dave.

ORDER

Dr. Deepti Mukesh, Member (Judicial)

1. This petition by way of Second Motion is admitted and fixed for hearing and final disposal on 29th March, 2022.

2. Learned Counsel for the Petitioner Companies submits that in terms of Order dated 10th March, 2021 passed by this Tribunal in Company Application No. CA(CAA)-06(AHM)2021, the meetings of the Equity Shareholders of the Transferor Compnay were dispensed with. Since, there were no creditors in the Transferor Company, the meeting was not required to be convened. The direction was given to convene the meetings of Equity Shareholder, Secured as well as Unsecured Creditors of the Transferee Company.

3. It is therefore now directed that the notice of final hearing shall be advertised in the daily newspapers namely, the "Indian Express" in English and "Financial Express" in Gujarati having circulation in Gujarat, not less than 10 days before the aforesaid date fixed for hearing.

4. In addition to the above public notice, the petitioner companies shall individually serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern - Western Region) at Ahmedabad, (b)Registrar of Companies, at Ahmedabad, Gujarat (c) to the Income Tax Department along with full details of assessing officer and PAN numbers of all the applicant companies with the copy also to the Chief Commissioner of Income Tax Office (d) Official Liquidator attached to High Court of Gujarat and to such other Sectoral Regulatory Authorities who may govern the working

of the respective Companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

5. Both the applicants, shall at least 7 days before the date of hearing of the petition file an affidavit of service in relation to the paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulator.

6. Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may file their objections on or before the date of hearing fixed herein, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

7. List it for further consideration 29.03.2022.

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(KAUSHALENDRA KUMAR SINGH)
MEMBER (TECHNICAL)

(DR.DEEPTI MUKESH)
MEMBER (JUDICIAL)

Abhishek Steno